



IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

WRIT PETITION NO. 2588 OF 2014
WITH
CIVIL APPLICATION NO.11973 OF 2015

. Sharadchandra S/o. Gopaldas Shroff
Age: 63 years, Occ: Business
R/o. Gulab Villa, Station Road,
Aurangabad.

...PETITIONER

VERSUS

1. The State of Maharashtra
Through the Secretary,
Urban Development Department,
Mantralaya, Mumbai.
2. The Collector,
Aurangabad.
3. The Special Land Acquisition Officer,
Aurangabad.
4. The Regional Manager,
Maharashtra Industrial Development Corporation,
Railway Station, Aurangabad.
5. Abdul Aziz S/o. Sk. Munir Choudhari
Age: Major, Occ: Proprietor of Delux Industries
R/o. House No.4-10-30, Jinsi,
Aurangabad.
6. Sk. Azim S/o. Sk. Fattu
Age: Major, Occ: Business,
R/o. House No.4-10-34, Jinsi,
Aurangabad.

...RESPONDENTS

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Mr. N. B. Khandare, Senior Advocate i/by Mr. S. S. Gangakhedkar
Advocate for the Petitioner.

Mr. R. P. Gaur, AGP for Respondent Nos. 1 to 4/State.

Mr. S. S. Dande, Advocate for Respondent No.4.

Mr. S. R. Deshpande, (through VC) a/w Mr. S. M. Gunjkar, Advocate for
Respondent No.6.

CORAM : KISHORE C. SANT &
SUSHIL M. GHODESWAR, JJ.

RESERVED ON : 23rd APRIL 2026.

PRONOUNCED ON : 29th APRIL 2026.

ORDER :- [Per: Kishore C. Sant, J.]

1. Heard Mr. Khandare, the learned Senior Advocate for the
Petitioner, Ms. Gaur, AGP for Respondent Nos. 1 to 3/State, Mr. Dande,
Advocate for Respondent No.4 and Mr. Deshpande, the learned Advocate
for Respondent No.6.

2. The petitioner, claiming to be the owner of property acquired by
Respondent No.4, has approached this Court seeking compensation for
his land. The Respondent No.1 is the State through Secretary, Urban
Development Department, Mantralaya Mumbai. Respondent No.2 is the

Collector, Aurangabad. Respondent No.3 is the Special Land Acquisition Officer, Aurangabad. Respondent No.4 is the Maharashtra Industrial Development Corporation through Regional Manager. Respondent Nos. 5 and 6 are the person against whom allegations are made that they have wrongly received the amount of compensation towards acquisition of the land.

3. The facts, in short, giving rise to the present writ petition are as follows: in 1973, the petitioner purchased a piece of land admeasuring 40R. from Gut No.10 at village Pandharpur Tal. & Dist. Aurangabad from one Dhanaji Ashraji by executing sale-deed dated 23.10.1973. On 19.08.1974, the said land was converted into non-agricultural (N.A.) land on an application made by the petitioner to the Respondent No.2/Collector. He, thereafter, erected a petrol pump on the said land to the extent of 20R and the remaining 20R land was kept open.

4. Thereafter, in 1975, he sold 20R the land to one Ashok Amladi. Thereafter, Ashok Amladi also sold the said land to one Sk. Munir Sk.

Mannu and Ors i.e. present respondent Nos. 5 and 6. In 2005, the respondents started encroaching upon the land of the petitioner. The petitioner, therefore, filed a Suit for recovery of possession and mandatory injunction. The said Suit came to be dismissed vide judgment and decree dated 10.07.2007.

5. Being aggrieved by the said Judgment, the petitioner filed an Appeal which was pending on the date of filing of the petition. In the year 2001, it was noticed by the petitioner that the respondent No.4 has taken possession of the land under acquisition and had paid compensation to Respondent Nos. 5 and 6. A notice was, therefore, issued in 2007 to Respondent No.4 seeking documents as regards acquisition proceedings of the land. In 2012, he sought documents under Right to Information Act; however, the same were not supplied. The petitioner, thereafter, approached this Court by filing WP/8063/2012 seeking directions to supply the copies of documents as regards acquisition proceedings.

6. In 2013, the petition was disposed of with an observation that the record of Acquisition Proceeding No.37/1982 did not contain Award and e-statement as regards land Gut No.10 of Village Pandharpur. The respondent No.2/Collector was directed to conduct an inquiry against the Erring Officials for loss of record. In the said writ petition, the Respondent/State informed that no award and e-statement in respect of the said land is available. It is now alleged that the land acquisition is illegal and that pyament made to respondent Nos. 5 and 6 by Respondent No.4 was illegal. It was, thereafter, directed that an inquiry be initiated. The petitioner, thereafter, made a representation for direction to the concerned officers to hand over vacant possession of the land. It is specific case that there was no notice issued under Sections 4, 6, 9 and 12 of the Land Acquisition Act. Now, the prayers made are that the Land Acquisition Proceeding bearing LAQ/AR/32/82 in respect of land Gut No.10 of village Pandharpur, Tq. and Dist. Aurangabad be quashed and set aside; and a declaration that the acquisition by Respondent Nos. 1 to 4 is illegal and void and to restore the possession back to the petitioner. The agreement dated 07.04.1988 executed in

favour of Respondent No.5 and 6 by respondent No.4 be declared as null and void and not binding on the petitioner. Subsequently, the prayer is added that it be held and declare that the land acquisition proceeding have lapsed for non-payment of compensation within a meaning of Section 24(2) of the Right to Fair and Transparency in Land Acquisition, Rehabilitation and Re-settlement Act, 2013 and to pay compensation at the present market value.

7. The learned Senior Advocate, Mr. Khandare, vehemently argued that the petitioner is fighting since long for his legitimate rights. Though the valuable land was taken into possession, the same was done without following due process of law. In any case, it is now revealed that the possession is taken by respondent No.4 by paying compensation to Respondent No.5 and 6. It is the duty of Respondent No.4 to recover the amount from Respondents and to pay it to the petitioner. In alternative, he submits that fresh acquisition proceedings need to be initiated, as the earlier proceeding has lapsed.

8. During the course of arguments, he invited attention to the order dated 21.03.2022 passed by this Court, wherein cognizance was taken of the conduct of the authorities and directed the learned Registrar (Judicial) to hold an inquiry and to submit a report. He submits that the report now shows that no record is found of acquisition and that compensation is paid to the persons who were not entitled to receive the compensation. He further submits that the Special Land Acquisition Officer is responsible to maintain the record. It was also responsibility of MIDC to maintain the record as the copy of award is available with them. In the acquisition proceeding, there was negligence or for some other reason, petitioner was kept completely in the dark, and proceeding was conducted in the wrong name and to circumvent this act, the relevant documents are not produced before the Court. He submits that now that the report is received of the Registrar, it is clear that the officers are responsible and by taking it seriously, action be taken against the officers. He further submits that in the earlier affidavit, the MIDC had taken one stand whereas now the MIDC has taken a totally different stand. Title and possession of petitioner itself is denied. He thus submits

that the petition deserves to be allowed.

9. The learned AGP so also learned Advocate Mr. Dande, vehemently opposed the petition. It is submitted that in the present case, there is a sheer fraud played upon this Court. Now, the respondent No.3 so also Respondent No.4 have filed affidavit in the month of March 2026. They submitted that earlier documents were not available, and therefore, the reply was differently filed. Now, by rigorous search at the hands of honest officers from the MIDC and the revenue department, it is found that the petitioner had purchased the land only to the extent of 20R by sale-deed dated 13.03.1975, he sold the entire land i.e. 21450 sq. ft. (20R) to Ashok Amladi. The facts of the second sale-deed is suppressed by petitioner which is now found by the officers. By a subsequent sale-deed in the year 1986, Mr. Ashok Amladi sold the land to Respondent No.5 and 6, and this is how the land came to be transferred to Respondent No.5 and 6.

10. When the land was acquired, the names of respondent Nos. 5 and 6 were shown in the record, and therefore, compensation was paid to

them. The petitioner, by taking benefits of some stray entries which still remained in the revenue record, has filed this petition. It is only because of the subsequent sale-deed that it could be gathered that, in fact, the petitioner had sold entire land with him. In the sale deed by which the petitioner purchased the land from Dhanabai Aasaram Pere in 7th April 1988. There is some overwriting appearing in that sale-deed. In all these grounds, it is submitted that the earlier affidavit was filed when the sale-deed dated 13.03.1975 was not available, wherein the petitioner sold the land to Ashok Amladi. The same was also not before the learned Registrar (Judicial), and therefore, the findings of the Registrar (Judicial) could not be properly recorded. In view of this fact, the subsequent affidavit is filed clearly stating all these aspects.

11. This Court thus has to consider whether the petitioner has shown that he was the owner of the property on the date on which the property was acquired. The case of the petitioner is that, when he purchased the land, the land was 40R, out of which only 20R was sold and the remaining 20R land was in his possession. The controversy now revolves

around this basic question as to whether, after selling 20R of land, the petitioner was still in possession of the remaining 20R. No doubt, the learned Registrar (Judicial) of this Court has given the report and recorded the finding that the MIDC and the authorities could not satisfy the Registrar about the acquisition of 20R of land in possession of the petitioner. However, this finding was in absence of copy of sale deed dated 13.03.1975. If both the sale deeds are considered, the area purchased by the petitioner and subsequently sold by him is the same. This Court thus finds that the report of Registrar (Judicial) does not carry any weightage as of now, as it is not based upon factual position.

12. In the affidavit of respondent Nos. 3 and 4 dated 26.03.2026, they have clearly stated that the petitioner needs to produce original sale-deed dated 23.10.1973. However, the said sale deed is not produced, as there is overwriting. The description of the property in both the sale-deeds matches. It is further seen that in 1981, the preliminary notification for acquisition was issued under the Maharashtra Industrial Act, 1961. It is difficult to believe that, the petitioner, owner of the land,

had no knowledge that the property was being acquired. The property, in the present case, is acquired long back i.e. in 1982. The petitioner approached this Court in the year 2013. In the meantime for the first time in 2007, he had filed a suit, which he lost, clearly showing that he could not establish his possession. It is also reported that now the appeal is also dismissed, which further fortifies the submission of learned AGP and learned Advocate Mr. Dande that the petitioner could not prove his title over the property. This Court also finds it inconceivable that till 2012, the petitioner waited without initiating any proceedings, when allegedly he had lost possession. There is every reason to believe that the petitioner has suppressed the basic fact that, in 1976, he sold the land to Amladi which in turn was sold in 1984 to respondent No.5 and 6. This Court does not find any illegality committed by the authority.

13. Further, all the prayers are in the nature of civil suit which reads as under:

“[A]. Rule may kindly be issued;

[A-1] By an order of this Hon'ble Court, it be hold and declare that, the land acquisition proceeding No.LAQ/AR/32/82 in respect of Gat No.10 of village Pandharpur, Tq. & Dist. Aurangabad to the extent of 20 R land of the petitioner are lapsed for non-payment of compensation within the

meaning of section 24 (2) of Right to Fair and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 and consequently the petitioner be paid with the compensation amount at present market value as per the provisions of Right to Fair and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

- [B] Record and proceeding may kindly be called for;
- [C] By issue of Writ of mandamus or any other writ in the like nature the acquisition proceeding No.LAQ/AR/32/82 in respect of land Gut No.10 of village Pandharpur Tq. & Dist. Aurangabad to the extent 20 R (22110 sq.ft.) may kindly be quashed and set aside;
- [D] By issue of Writ of mandamus or any other writ in the like nature it be directed to respondent No.1 to 6 that the illegal acquisition is void and the same is quashed and set aside by restoring the possession back to the petitioners in respect of land Gut No.10 of village Pandharpur Tq. & Dist. Aurangabad admeasuring 20 R (22110 sq. ft.).
- [E] By issue of Writ of mandamus or any other writ in the like nature the agreements dated 7th April 1988 executed in favour of respondents No.5 & 6 by the respondent No.4 be declared as null and void and not binding on the petitioner;
- [F] Pending hearing and final disposal of this Writ Petition the respondents No.1 to 4 and 5 & 6 and their representatives, successors, legal heirs, any person acting on their behalf, agents, servants, officers may kindly be restrained from alienating or creating third party interest over the land Gut No.10 of village Pandharpur District Aurangabad.
- [G] Any other just and equitable relief which deems fit and proper may kindly be granted in favour of the petitioner in the interest of justice and oblige.”

14. All prayers are in the nature of those to be made before the Civil Court, except prayer clause [C], as in the prayer clause [D] he prays for restoration of the possession and a declaration that the agreement dated 07.04.1988 is executed in favour of respondent No.5 and 6 be declared null and void and not binding on the petitioner.

15. Only added prayer [A-1] is in respect of initiating proceedings under the new Act. This Court has no doubt in its mind that it is totally a fraud sought to be played upon this Court. Though an inquiry was directed by this court and the report is received, it is seen that even before the Registrar (Judicial), the copy of sale-deed dated 13.03.1975 was not produced. It is only because of the rigorous search by the authorities and the some officers of respondent No.4 that this Court could be apprised of the true facts. The conduct of the petitioner also creates serious doubt that the petition is filed in 2014, he did not take any steps though it is his case that he was running petrol pump on the said land which was in his possession. This Court can hardly accept that still he never got knowledge of the acquisition or even the possession taken by the petitioner. Whereas it is specific case of the respondent No.4 that the land was taken by agreement dated 07.04.1988 by negotiation from Respondent No.5 and 6. It is also specifically pointed out that the entire Gut No.10 admeasures 10H 14R where the details are given at page No.227 as per area. This acquisition also matches with the area of entire gut number. It is not the case of the petitioner that any

other land from some other gut is acquired where he was having his land. The Suit bearing RCA No.235/2012 also came to be dismissed vide order dated 05.02.2019. It also needs to be noted that he lost the suit in the year 2007 and till filed appeal only in 2012. All these aspects shows that the petitioner has not approached this court with clean hands and has tried to play fraud. The petition therefore deserves to be dismissed with heave costs.

16. The petition, therefore, stands dismissed with costs of Rs. 1,00,000/- since the machinery of this Court was also utilized.

17. Out of the said costs of Rs.1,00,000/-, Rs.30,000/- each shall be paid to Respondent Nos. 2, Respondent No. 4 and the office of learned Judicial (Registrar) of this Court, and the remaining amount of Rs.10,000/- shall be paid to the Creche/Day Care Center running in the premises of this Court.

18. This Court appreciates the efforts of the officers who have, by rigorous search, found the subsequent sale-deeds. It is only because of

this the real picture came before the Court.

19. With this, writ petition stands disposed off.

20. In view of disposal of writ petition, pending civil applications, if any, also stand disposed off.

[SUSHIL M. GHODESWAR, J.]

[KISHORE C. SANT, J.]

D.A.ETHAPE